

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #03	CCRB Case #: 201411341	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/07/2014 6:05 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/7/2016	Precinct: 77		
Date/Time CV Reported Fri, 11/07/2014 10:53 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/07/2014 10:53 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 James Miles	1016	944810	GANG BN
2. SGT Ryan Gillis	05086	944595	GANG BN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 James Miles	Abuse: Det. James Miles entered and searched § 87(2)(b)	A . Exonerated
B . DT3 James Miles	Abuse: PO James Miles threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . SGT Ryan Gillis	Abuse: Sgt. Ryan Gillis refused to show a search warrant to § 87(2)(b)	C . Unsubstantiated

Case Summary

On November 7, 2014, § 87(2)(b) filed this complaint with the CCRB via telephone.

On November 7, 2014, at approximately 6:05 a.m., Det. James Miles, Sgt. Ryan Gillis, and other officers from the Brooklyn North Gang Squad executed no-knock search warrant § 87(2)(b) at § 87(2)(b) in Brooklyn for the criminal investigation of marijuana trafficking (encl. 8A) **(Allegation A)**. The officers recovered marijuana and ammunition in the apartment and subsequently arrested § 87(2)(b) and § 87(2)(b). Det. Miles allegedly stated that the officers may arrest § 87(2)(b)'s son, § 87(2)(b) as well **(Allegation B)**, but § 87(2)(b) was not arrested. § 87(2)(b) allegedly asked Sgt. Ryan Gillis to show her a search warrant three times, including when he first entered the apartment, while the officers searched the apartment, and as he exited the apartment. Each time, Sgt. Gillis allegedly said he was going to show her the warrant, but neither he nor any other officer did so (encl. 4B) **(Allegation C)**.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation during her sworn statement on December 8, 2014. She rejected mediation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b) has not filed a notice of claim with the City of New York as of January 13, 2015 with regard to the incident (encl. 17O).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2A) and the first complaint in which § 87(2)(b) is named as a participant (encl. 2B).
- Det. James Miles has been a member of the NYPD for 7 years and has had 14 previous CCRB allegations involving 9 cases with 1 substantiated allegation (encl. 1A).
 - In case 201212149, an allegation that Det. Miles improperly stopped an individual was substantiated. Charges were recommended and the NYPD has not yet taken any disciplinary action against Det. Miles.
- Sgt. Ryan Gillis has been a member of the NYPD for 7 years and has had 5 previous CCRB allegations involving 4 cases with no substantiated allegations. § 87(2)(g)

Finding and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Recommendations

Allegation A – Det. James Miles entered and searched § 87(2)(b)

The investigation determined that the search conducted at § 87(2)(b) on November 7, 2014 was in accordance with a valid no-knock search warrant. Kings County search warrant § 87(2)(b) was obtained by Det. James Miles § 87(2)(b) and was supervised by Sgt. Ryan Gillis (encl. 8A-B). The pre-execution plan notes Cpt. Stephen Espinoza as the overall supervisor and the highest ranking officer present during the execution of the search warrant. It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Det. James Miles threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that as the officers were arresting § 87(2)(b) and § 87(2)(b) Det. James Miles said, “We might take your son, too,” referring to § 87(2)(b) § 87(2)(b) recalled this phrase as, “You keep this up, we can take the kid from you right now. If you don’t tell is where it’s at, we’re gonna take him from you.” § 87(2)(b) was not ultimately arrested. Both Det. Miles and Sgt. Ryan Gillis denied making these statements, threatening to arrest § 87(2)(b) or hearing any other officer do so. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Sgt. Ryan Gillis refused to show a search warrant to § 87(2)(b)

§ 87(2)(b) allegedly asked Sgt. Ryan Gillis to show her a search warrant three times, including when he first entered the apartment, while the officers searched the apartment, and as he exited the apartment. In a subsequent telephone statement, she stated that she only asked Sgt. Gillis as the officers searched the apartment while she was in the living room. Each time, Sgt. Gillis allegedly said he was going to show her the warrant, but neither he nor any other officer did so at any point. § 87(2)(b) initially stated that he heard § 87(2)(b) complain that the officers did not show her a warrant but did not hear her ask them to show her a warrant. In a later statement, § 87(2)(b) stated that he heard § 87(2)(b) ask the officers collectively to show her a search warrant while they were both in the living room. The officers allegedly ignored § 87(2)(b) § 87(2)(b) s request and § 87(2)(b) did not see the officers show § 87(2)(b) a warrant at any point.

Sgt. Gillis did not recall whether § 87(2)(b) asked to see a search warrant and denied that he or any other officer refused to show her a warrant. Sgt. Gillis stated that Det. Miles had a copy of the warrant and that an officer showed § 87(2)(b) the warrant as the officers exited the apartment, but he did not recall whether it was Det. Miles that showed her the warrant. Det. Miles stated that after the search was completed, § 87(2)(b) asked to see the search warrant and he showed it to her prior to leaving her apartment.

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Pod: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date